NCC VOLUME ONE AND TWO
THE BUILDING CODE OF AUSTRALIA

Frequently Asked Questions (FAQs)

QUESTION 1

What is the National Construction Code (NCC)?

Answer

The NCC is an initiative of the Council of Australian Governments (COAG) developed to incorporate all on-site construction requirements into a single code. The NCC comprises the Building Code of Australia (BCA), Volume One and Two; and the Plumbing Code of Australia (PCA), as Volume Three.

QUESTION 2

Do practitioners have to comply with the NCC?

Answer

Yes, each State and Territory adopts the NCC into legislation as the technical basis of building and plumbing regulations. Therefore the NCC is part of the law throughout Australia and practitioners needs to comply with it – unless the law provides a process through which special dispensation is granted.

QUESTION 3

Who produces the NCC?

Answer

The Australian Building Codes Board (ABCB) is a COAG standards writing body responsible for the NCC, which includes the BCA and PCA. The Board is made up of an independent Chairman, representatives of all three levels of government and Ministerial appointed members from the building, construction and plumbing industries.

QUESTION 4

Why does Australia have building regulations?

Answer

Building regulations aim to protect people and the environment. These regulations apply to the people involved in the construction of buildings, occupants of the building throughout its working life and to those involved in the demolition of the building.

People are protected from risks such as structural collapse, fire in a building and health and amenity issues such as damp, adequate ventilation, lighting, sanitation and sound insulation.

In regards to protection of the environment, requirements for the efficient use of energy in buildings are aimed at reducing greenhouse gas emissions.

QUESTION 5

What parts of the NCC are mandatory?

Answer

The mandatory parts of the NCC are the Performance Requirements contained in Sections B to J of Volume One and Section 2 of Volume Two.

A Deemed-to-Satisfy Solution is an optional means of achieving compliance with the mandatory Performance Requirements.

In addition to a Deemed-to-Satisfy Solution, practitioners may also a develop Performance Solution to achieve compliance. If a Performance Solution is used, it must be assessed for compliance with the Performance Requirements. Assessment methods include evidence of suitability, verification methods, comparison with the Deemed-to-Satisfy Provisions and expert judgement.

QUESTION 6

What is a Performance Solution?

Answer

A Performance Solution is a design that complies with the relevant Performance Requirement/s, but is different to the Deemed-to-Satisfy Provisions.

The ABCB guidance document 'Development of Performance Solutions' can assist practitioners to develop a Performance Solution – the guide can be downloaded free from the ABCB website **www.abcb.gov.au**.

QUESTION 7

Why would I want to include a Performance Solution in a building design?

Answer

Performance Solutions allow practitioners to do things differently from a Deemed-to-Satisfy Solution and this outcome can have many benefits, including cost savings.

Performance Solutions can also be used to improve constructability, i.e. to create designs that are easier to build than Deemed-to-Satisfy buildings; e.g. Deemed-to-Satisfy Provisions may require a fire-resisting wall to be constructed of concrete or masonry. However, a Performance Solution may propose that a steel framed wall be used instead, which may improve constructability and still achieve the required result.

Performance Solutions can also incorporate innovation; e.g. a brick manufacturer may develop a new brick made from compressed cow manure. This form of brick may not comply with Deemed-to-Satisfy Provisions; however it may be used as part of a Performance Solution if it can be demonstrated to comply with relevant Performance Requirements.

QUESTION 8

If a practitioner wants to incorporate a Performance Solution into a design should they consult a specialist practitioner / obtain an expert opinion?

Answer

In order to incorporate Performance Solutions into designs, practitioners need to understand what the NCC requires and why. This level of knowledge is generally acquired from qualifications and relevant experience. Without the necessary knowledge, practitioners will find it difficult to maximise benefits for their clients.

If the subject of the Performance Solution is an area of specialist design, such as structural design or fire safety, consultation with suitably qualified practitioners would be expected. Another important consideration is the scope of documentation that will be required by the Certifying Authority as part of the assessment process. It is recommended that guidance is sought from the Certifying Authority early in the design process.

QUEsTION 9

Can a practitioner incorporate a Performance Solution into a small part of a design or must it be for the whole design?

Answer

Yes. Clause A0.2 of the NCC Volume One and 1.0.2 of NCC Volume Two recognises the flexibility of performance based building and states compliance with the Performance Requirements is achieved by

a) developing a Performance Solution to meet the Performance Requirements;

b) complying with the Deemed-to-Satisfy Provisions (Deemed-to-Satisfy Solution); or

c) a combination of the above.

Achieving compliance through the use of option c) a combination of the above, allows total flexibility regarding the parts of the design that are subject to a Performance Solution.

QUESTION 10

NCC Volume Two contains a part called “Acceptable Construction”. What does this mean?

Answer

The Deemed-to-Satisfy Provisions of Volume Two are referred to as “Acceptable Construction”. This term describes methods of construction that are considered as meeting the Performance Requirements.

There are two mains forms of acceptable construction:

1. **acceptable construction manuals**, which can include Australian Standards or other documents referenced in the NCC; and

2. **acceptable construction practice**, which are methods of construction described in the NCC that generally reflect traditional techniques.

Remember, both these forms of acceptable construction are optional and practitioners don’t have to use them if they prefer not to. Any form of construction is allowed as long as the Certifying Authority is satisfied that the relevant Performance Requirements have been met.

QUESTION 11

What types of building work need to comply with the NCC?

Answer

The application of the NCC is determined by each State and Territory. Generally all new building work must comply with the NCC, whether the work is private or undertaken on behalf of the Australian Government. Alterations or additions to an existing building also need to comply with the NCC.

If an existing building is changing its use of classification – for example a warehouse is to be converted into an apartment building – the new use will generally need to comply with the NCC as if it were a new building. However, the Certifying Authority may only require some parts of the building to comply with the NCC.

In some States and Territories, a Certifying Authority may also have discretion to require parts of any existing building to be brought into compliance with the NCC, whether or not new work is proposed. This level of discretion is most likely to occur when improving essential fire safety standards in buildings.

QUESTION 12

The NCC contains State / Territory variations and additions. Why do these exist in a national building code?

Answer

State and Territory governments retain the right to vary or add to the NCC as they see fit. Variations occur when a State or Territory chooses to vary something in the NCC. Additions occur if a State or Territory adds something not covered in the NCC; often because regulations contained in different pieces of legislation are consolidated into the one document.

Variations and additions are law within the respective jurisdiction that they have been applied.

QUESTION 13

Many provisions of the NCC apply to specific classifications of buildings. The NCC describes each classification, but what do these classifications actually represent?

Answer

Buildings and structures are generally designed and constructed for a specific use. As there are numerous uses for buildings there could be any number of design and construction solutions. It would be impractical for building regulations to develop requirements for each individual use. Therefore, it is necessary to group similar uses together.

The groupings reflect consideration of the dominant characteristics of the building and the associated risks, including; the activities conducted in the building, the characteristics of the building occupants, and the fuel load of the building.

The various groupings of buildings are presented as the various classifications described in the NCC.

QUESTION 14

Why does the NCC have some of its text in plain type and some terms that are written in italics?

Answer

The terms written in italics are defined in the NCC and the use of italics helps to identify those terms. This is very important when using the NCC because the meaning specific terms should not be assumed. Defined terms have a meaning that may be unique to the NCC and if a practitioner assumes the wrong meaning, the result could be a design that doesn't comply.